

Rateesh Sharma vs The Chandigarh Sector 21 Universal ... on 9 April, 2010

BEFORE THE DISTRICT CONSUMER DISPUTES REDRESSAL FORUM-I, U

THE CONSUMER
DISPUTES REDRESSAL COMMISSION,

UNION
TERRITORY, CHANDIGARH

Appeal No.409 of 2009

Rateesh
Sharma, H.No.123, Sector 40-A, Chandigarh

..Appellant

V e r s u s

1. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Santokh Singh, Office of Registrar Co-op. Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.

2. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Santokh Singh, Office of Registrar Co-op. Societies Chandigarh, 30 Bays Building, Sector 17-A, Chandigarh.

3. Registrar Co-op. Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.

4. Inderjeet Bajaj, Ex. President c/o Nand Lal, SCF 14, Sector 29, Chandigarh.

2nd Address: H.No.1088,
Sector 7, Panchkula.

5. Surjit Chaudhary, Ex. Secretary,
H.No.117, Sector 18-B, Chandigarh.

6. Devinder Gupta, Ex. President, SCF-10,
KB, Empire Store, Sector 21-C, Chandigarh.

7. Anil Aggarwal, Cashier-cum-Executive
Member, H.No.1214, Universal Enclave, Sector 48-B, Chandigarh.

8. Kamal K.Sharma, Executive Member,
152/2, Sector 45-A, Chandigarh.

9. Devinder Pal Sharma, Executive Member,
H.No.1114, Universal Enclave, Sector 48-B, Chandigarh.

---Respondents

BEFORE: Hon'ble Mr. Justice Pritam Pal, President.

Honble Maj. Gen. S. P. Kapoor (Retd.),
Member

Honble Mrs. Neena Sandhu, Member.

Present: Sh. Aalok Jagga, advocate for appellant.

Sh.

K.K. Sharma, Advocate for respondents No. 1,2,5,6,8,&9 Sh.

M.S. Sihag, Distt. Attorney for respondent No.3 None for respondent No.4 Maj. Gen. S. P. Kapoor (retd), Member

1. By this order we are disposing of a bunch of 20 appeals tabulated below filed by different appellants/complainants against the OPs i.e. The Chandigarh Sector 21 Universal Cooperative House Building First Society Limited, Chandigarh and others against a common order dated 29.6.2009 passed by District Consumer Disputes Redressal Forum-II, U.T. Chandigarh (for short hereinafter to be referred as District Forum). The main order has been delivered in complaint case NO.496 of 2008 Rateesh Sharma Vs. The Chandigarh Sector 21 Universal Cooperative House Building First Society Limited, Chandigarh and others.

According to the impugned order of the District Forum dated 29.6.2008, all the complaint cases involved common questions of facts and law and that was the reason for deciding the bunch of 21 complaint cases by a common order but only following 20 appeals have been filed before us:-

Sr No Appeal No. C.C. No. Name of appellant (complainant) Name of respondents (OPs).

1.

Rateesh Sharma The Chandigarh Sector 21 Universal Housing Building First Society Ltd. and others.

2. Kuldeep Singh

-do-

3. Mukesh Kumar

-do-

Manjit Kaur

-do-

Kuldip Singh Bhatia

-do-

Sanjeev Jain

-do-

Usha kiran

-do-

Sushma Sharma

-do-

Hardeep Singh

-do-

Smt.Vinod Goel

-do-

Surinder Kaur

-do-

Sangeeta Kumari

-do-

Vijay Dutta

-do-

Kalwant Singh

-do-

Varinder Sharma

-do-

Santosh Kumari

-do-

Raj Kumar Gupta

-do-

Shalini Vadehra

-do-

Pala Ram

-do-

Har Deo Singh

-do-

2. Since in all the above mentioned appeals, common questions of law and facts are involved, so, we are also deciding all the above mentioned appeals by this common judgment, which is being rendered in appeal case No.409 of 2009 Rateesh Sharma Vs. The Chandigarh Sector 21 Universal Cooperative House Building First Society Limited, Chandigarh and others. In order to appreciate the controversy involved before us in these appeals, the facts are taken from Rateesh Sharmas case i.e. complaint case No.496 of 2008.

3. Briefly stated the case of the complainant is that in the year 1991, Chandigarh Administration floated a scheme called Chandigarh Allotment of Land to Cooperative House Building Societies Scheme, 1991 to promote private housing and optimum utilization of land by constructing multi-storeyed structures and as such, a number of societies came into existence including OP No.1 i.e. The Chandigarh Sector 21 Universal Housing Building First Society Ltd. (for short hereinafter to be referred as the Society). It was averred that originally, there were about 186 members in the said society, who deposited the initial amount of earnest money. However, later on, it was averred in the complaint, about 121 members of the society surrendered their membership for various reasons. As per the complainant, as the construction was to be completed within the stipulated period and for that purpose money was required, the Managing Committee of the Society thought it proper to fill in the vacancies caused by the members who surrendered their membership and as such, an advertisement was published in the Tribune dated 16.01.2003 which reads as under:-

The society intends to substitute a few members for allotment of house/flat in its ongoing housing project in sector 48-B, Chd against the members who have surrendered their entitlement from owing the house/flat of the society. The persons of public who are willing to own house/flat of the society by way of substitutions on first come first serve basis may contact the office personally for completion of related formalities within 7 days of publication of this notice.

4. It was averred by the complainant that he became member of the Society after reading the above advertisement (C-1) and paid a sum of Rs.110/- as membership fees vide receipt No.1751 on 29.04.2003 (C-2). As per the complainant, a Share certificate No.221 (C-3) was also duly issued to him on 10.07.2003 by OP No.1.

As per the complainant, he received letter (C-7) wherein it was mentioned that the total cost of Category A flat would be Rs.8 lacs and he was asked to deposit the said amount as per the schedule mentioned in the letter. It was averred that the complainant paid a sum of Rs.9,25,410/- in installments vide receipts (C-4 to C-6) against the said total cost. The total time period for completion of the construction, it was averred, was 18 months and vide letter dated 05.01.2003 (C-8), the President of the Society gave details of work to be completed by the society within the stipulated period of his becoming the member. As per the averments made in the complaint, the draw of the lots was to be held on 28.05.2005 but the OPs in collusion with OP No.3 did not hold draw of lots. It was next averred in the complaint that the complainant along with other members of the society had filed a CWP No.10691 of 2005 before the Honble High Court and the Honble High

Court passed an order for restoration of rights as members and also ordered for holding draw of lots for the allotment of flats and the complainant and other members substituted later on were also allowed to participate in the draw of lots. The complainant next averred that despite the said orders of the Honble High Court, OPs failed to hold the draw of lots and as such, a COCP No.1388 dated 28.01.2008 was filed before the Honble High Court wherein a direction was given that the original allotment letters in terms of draw of lots be handed over to the petitioners within three days failing which OP No.4 was to be made liable to pay exemplary costs. As per the complainant, ultimately, draw of lots was held and the complainant was allotted flat No.1219 vide letter dated 14.11.2007 (C-11) subject to the clearance of all dues. It was alleged that construction work was not completed by OPs as promised by them and the flat allotted was not in a livable condition. As per the complainant, there were many structural cracks in the building, which could endanger the life and property. These shortcomings in the construction were also brought to the notice of OP Society by the complainant vide letter dated 23.12.2007 (C-12) but OPs failed to get the construction work completed and the complainant got the remaining construction work done at his own expenses. The complainant, it was averred, also wrote a letter to OPs for refund of the amount spent by him for completion of the remaining work of construction. According to the complainant, now the Administrators have been appointed by OP-3 for regulation of the working of the Society but still, nothing concrete has been done. Alleging the above act and conduct of OPs as deficiency in service on their part, the complainant had filed the present complaint before the learned District Forum.

5. The version of OPs No.1 and 2 in their joint written statement is that the complainant was substituted against a vacant share/flat surrendered by an original member but as per clause No.21 of the allotment letter, the approval of Registrar, Cooperative Societies, UT, Chandigarh (OP No.3) was required for allotment of flats to such substituted member. These OPs next stated that the original members had deposited various amounts on various dates to make it 25% earnest money to make themselves eligible for allotment of land by the Chandigarh Housing Board, Chandigarh and thereafter, paid costs of flats mentioned below before getting the possession of their respective flats. As per these OPs, even some of the substituted members also deposited the amount for getting possession. OPs No.1 and 2 had also detailed in their reply the details of amount required to be deposited for each category i.e. A, B, C prior to allotment of land in January 2002 and total amount paid for the respective flats as under:

Category A Total Cost of flat --Rs. 17.36.366-00 25% Earnest Money-Rs. 1,69,000-00+ other Expenses Category B Total Cost of flat -Rs. 13.77.999-00 25% Earnest Money-Rs. 1,23,270-00+ other Expenses Category C Total Cost of flat --Rs. 10.94.293-00 25% Earnest Money-Rs. 97,830-00+other Expenses It was next stated that besides the above payments, the substituted members were also required to pay interest on delayed payments and the Managing Committee of the society had issued notices to the substituted members in compliance of the orders dated 4.2.2008 passed by the Hon'ble High Court in COCP No. 1388 of 2006 titled as 'Kuldip Singh etc Vs Krishna Mohan etc' whereby these substituted members were asked to deposit the arrears of dues, which have not been paid till date and the complainants are still in arrears of those dues. It was next stated that the cost of the flat of each category mentioned in the letter was tentative, which was worked out on the basis of building

plans submitted to the Chandigarh Administration. It was further stated by these OPs that the actual cost of construction was to be adjusted in the last installment after completion of the construction, keeping in view the escalation in the price of construction for various reasons. Pleading no deficiency in service on their part, these OPs prayed for dismissal of the complaint.

6. OP No.3 in his separate reply stated that the name of the complainant had been cleared by it and the Society had been informed accordingly. As such, pleading no deficiency in service on his part, this OP also prayed for dismissal of the complaint. Counsel appearing on behalf of OPs No.4, 5, 7 to 9 vide his statement dated 20.03.2009 also adopted the reply as well as evidence filed by OPs.No.1 and 2. OP No.6 was proceeded against exparte by the learned District Forum vide its order dated 02.09.2008.

7. The learned District Forum, in its analysis of the complaint, first recorded in the impugned order that there was no misrepresentation of facts in the advertisement dated 16.01.2003. The learned District Forum further recorded that the ratio of case titled as Seema Vs. Rohit Sachdeva reported as 2008(II) CPJ-2007 in respect of issuance of misleading advertisement was not applicable to the facts and circumstances of this case as there was misrepresentation in the newspaper regarding affiliation of the college whereas in the present case, there was no misrepresentation of fact.

8. As regards the second argument advanced by the learned counsel for the complainants that there was a delay in allotment of flats, the learned District Forum recorded in the impugned order that after the decision of the writ petition in view of the consensus arrived at between the parties, the parties were directed to comply with the statements made before this Court and as such, ultimately permission was given to the newly enrolled members for participation in the draw of lots vide various letters dated 26.09.2007, 24.03.2008, 14.07.2008 and 21.11.2008 and the draw of lots were held on different dates. The learned District Forum also recorded that the Honble High Court was pleased to direct the substituted members to submit their affidavits in performa (R-4 and R-5) but the complainant failed to comply with the said directions and the society had to file an application in CWP No.10691 of 2006 for extension of time and for direction to the complainants for submitting the required affidavits. It further recorded that all the required affidavits were received in the month of June and July, 2007 during the pendency of the contempt petition and on 09.08.2007, the Honble High Court was pleased to pass the following order in COCP no.1388 of 2006:-

Mr.Munjal states that the affidavits in proper format have been received by the respondents NO.4 and 5 and that the consequential steps will be taken within 2 weeks. List for 23.08.2007.

9. The learned District Forum further recorded that ultimately, the draw of lots was held and flats were allotted to the complainant and later on the complainant took the possession even without paying the outstanding dues against him, consequent to which, OP-Society had to give notices to the complainant for payment of outstanding dues against him. In view of the above discussion, the learned District Forum held the view that apparently delay in holding the draw of lots took place only because the Chandigarh Administration did not permit for participation of the complainants in

the draw of lots and they were allowed to participate in the draw of lots only after intervention of the Honble Court. As such, as per the learned District Forum, the delay for holding the draw of lots for allotment of the flats to the complainant was not because of the acts and omissions of the OP-Society but due of the fact that the Chandigarh Administration took long time in according required sanction for participation of the complainants in the draw of lots.

10. As regards the allegation of the complainant relating to the construction of flats totally incomplete and there being certain deficiencies in construction, the learned District Forum held that there was no evidence on record except the affidavits of the complainant regarding the alleged deficiencies pointed out in the letter dated 23.12.2007. It further held by the learned District Forum that no evidence was placed on record to prove that the flats were incomplete at the time of delivery of possession. It also recorded that no report of any expert/engineer had been placed on record to prove this allegation and further, no documentary evidence such as bills etc. had been placed on record to prove the purchase of the material used for completion of construction by the complainants. In the view of the learned District Forum, the complainant had failed to prove that he had completed the remaining construction from his own resources. Holding that the complainants had totally failed to prove any deficiency in service or any unfair trade practice on the part of OPs, the learned District Forum dismissed all the complaints by leaving the parties to bear their own costs.

11. Aggrieved by the said order of learned District Forum, all the complainants have filed a bunch of appeals as mentioned in the earlier part of the judgment. The appeals have been taken on board, notices were sent to the respective respondents/OP and record of complaint cases were summoned from the District Forum. Initially Sh. Aalok Jagga, Advocate appeared on behalf of the appellants/complainants but on the date of final hearing, none appeared on their behalf. Subsequently on 26.3.2010 Sh. Alok Jagga, Advocate appeared on behalf of the applicant and sought leave of the court to argue the matter vide MA No.53/2010. The necessary permission was granted arguments on behalf of appellants (complainants were heard) Sh. K. K. Sharma, Advocate appeared on behalf of OPs No.1, 2, 5, 6, 8 and 9 and filed his written submissions besides extending oral arguments. Sh. M. S. Sihag, District Attorney appeared on behalf of OP No.3 Registrar, Cooperative Societies, Chandigarh. Respondents No.4 and 7 were proceeded against ex parte vide order dated 1.10.2009 as they refused to accept the service.

12. Sh.

Aalok Jagga, Advocate learned counsel for the appellant submitted that there are four grouses of the complainants as under:-

a.

There was no substitution policy but in the advertisement the Society represented by OP Nos.1 and 2 had in the advertisement stated that substitution was permitted, which is unfair trade practice.

b.

There was delay in the offer of possession.

c.

There was defect in the construction of flats.

d.

Many items/works promised to be provided in the flats had actually not been provided.

13. The learned counsel reiterated that the complainants were substituted members of the OPs Society and they had been given possession of incomplete flats. With regard to the substitution policy he submitted that Exhibit C-1 (page 51 of the appeal file of appeal filed by Kuldeep Singh) clearly indicates that substitution was permissible, meaning thereby that a substitution policy was in existence, he thereafter referred to written statement filed by OPs No.1 and 2 in the case of Usha Kiran (Annexed as page 71 onwards of the appeal filed by Kuldeep Singh) and referring to Paras 4 and 5 of this written statement brought to the notice of the Bench that Registrar Cooperative Societies, U.T., Chandigarh did not allow the Society to hold the draw for substituted members on the ground that the name of the substituted members would not be allowed to be included in the draw till the formation of substitution policy and further referring to Para 7 of this written statement he indicated that as per the OPs the substitution policy came into existence only on 6 August, 2006. The learned counsel also referred to the letter of Joint Registrar Cooperative Society, Chandigarh issued vide Memo No. Coop/HB/03/01.01.04 dated 6.1.2004 wherein it had been stated that policy of substitution was yet to be framed. He therefore, emphatically submitted that at the time of issuance of the advertisement there was no substitution policy in existence and thus OP Nos.1 and 2 had misled Complainants, which amounted to deficiency in service as well as unfair trade practice. The next submission of the learned counsel was that even the Honble High Court had passed stricture against the OPs in its order dated 28.1.2008 in COCP No.1388 of 2006 and had observed that the OPs were not only obstinate and arrogant but were also deliberately harassing the petitioner in not handing over original allotment letters to the petitioners.

14. Dealing with issue of delay in possession of the flats he referred to Exhibit C-8 (Page 58 of the appeal of Kuldeep Singh) and pointed out to the Bench that after the approval of the concept plan/building plan only 18 months were further required for conclusion of construction of the project. He reiterated that this Exhibit issued in 2003 made a commitment that the flats would be given to the complainants in 2005 but admittedly the possession of the flats were given much later after filing of the complaint. Coming to the next issue with regard to the non provision of promised items, he referred to the Exhibit C-9 (Page 61 of the appeal of Kuldeep Singh) and submitted that many Items such as marble flooring had not been provided and no electricity connection had also

been provided at the time of handing over the possession of the flats. Learned counsel further submitted in this context and in the context of faulty/defective construction, the complainant had moved an application for appointment of Local Commissioner on 23.6.2008 but the learned District Forum had without disposing of this application passed the impugned order. The District Forum had also not taken into consideration 40 photographs showing non-completion of the flats as well as defect in the construction. He therefore, prayed that the complaint cases be remanded to the learned District Forum for appointment of a Local Commissioner and thereafter passed an appropriate order after seeking a report from the Local Commissioner.

15. Sh.

M. S. Sihag, District Attorney appearing on behalf of OP No.3 i.e. Registrar, Cooperative Societies, Chandigarh submitted that substitution is permissible but prior permission of the Registrar Cooperative Societies is mandatory and the same had not been taken.

16. Sh.

K. K. Sharma, Advocate, learned counsel appearing on behalf of OPs No.1, 2, 5, 6, 8 and 9 i.e. Society and its respective President, Ex-President, Ex-Secretary, Cashier-cum-Executive Member and Executive Members filed his written submission and primarily bringing out that Punjab Cooperative Society Act 1961 is applicable to Union Territory, Chandigarh. The OP Society is a Body Corporate and is to be sued through its name only and through its office bearers and no individual is personally responsible for any act done by the Managing Committee. It has also been brought out in the written statement that the office bearers cannot be held responsible/liable personally in any debt/loan due from the society. It has also been submitted in the written arguments that as per settled law by the Honble Supreme Court in the case titled as General Manager Telecom Vs. M. Krishnan and another reported as 2009(4) CLT SC page 410 Special Law overrides the general law and therefore, this issue should be referred to an Arbitrator and Consumer Fora cannot go into this issue. In the written arguments it is finally submitted that the appellants are defaulter of arrears of dues and the society had filed reference of disputes under Section 55 /56 of the Act against the appellant for recovery of the due amount which is pending before the concerned Arbitrators.

17. We have heard the counsel for the parties and have also gone through the record of the complaint case as well as impugned order. The main issues that needed to be gone into are as under:-

a.

Whether the OPs have indulged in any unfair trade practice or deficiency in service by representing in their advertisement that there was a substitution policy for making the complainants the substituted member?

b.

Was there any inordinate delay in handing over possession of the flats and if so who is responsible for the same?

c.

Was there any defect in the flats and whether promised works/items had been provided or not when possession was offered to the complainant?

18. Coming to the first issue with regard to the substitution policy it is contended that substitution was permissible when the advertisement had been issued by the OP Society but procedure to be followed was that the name had to be referred to the Registrar Cooperative Societies and his permission had to be sought. The impugned order does not clarify whether this procedure was properly followed or not. It is also silent about the correspondence in this context between the OPs No.1 and 2 and the OP No.3 therefore, in our considered view this whole issue needs a reconsideration. Coming to the next issue with regard to the delay in handing over the possession it is seen that this issue has not been dialated upon in the impugned order by the learned District Forum. Coming to the issues relating to non-provision of various items and defect in the construction of the flats, even though it has been stated by the learned District Forum that no evidence has been placed by the complainants in this context, it is seen that the application with regard to the appointment of Local Commissioner filed before the learned District Forum has remained undecided. In our considered view a qualified Local Commissioner would have been the right person to assist the learned District Forum in arriving at a logical and fair conclusion in deciding this issue. Keeping in view that the Consumer Protection Act is enacted, which is for better protection of the rights of the Consumer, in our opinion the request of the complainants for the appointment of the Local Commissioner at their cost should have been conceded to by the learned District Forum.

19. In view of the foregoing discussion, we find merit in the prayer of the appellants that the complaint cases be remanded back to the learned District Forum. Consequently, all the appeals bearing No.408 to 427 all of 2009 are accepted and the impugned orders are set aside and the respective complaint cases are remanded back to the learned District Forum for deciding afresh, after giving due consideration to the application for the appointment of a Local Commissioner filed by the complainants and also after giving due opportunities to both the sides to bring on record any other relevant documents/evidence. Parties are directed to appear before the learned District Forum concerned on 26.4.2010.

20. Copies of this order be sent to the parties, free of charge.

9th April, 2010.

[JUSTICE PRITAM PAL] PRESIDENT [MAJ. GEN. S. P. KAPOOR (RETD.)] MEMBER [MRS. NEENA SANDHU] MEMBER mp/-

of 2009 Present: Sh. Aalok Jagga, advocate for appellant.

Sh. K.K. Sharma, Advocate for respondents No. 1,2,5,6,8,&9 Sh. M.S. Sihag, Distt. Attorney for respondent No.3 None for respondent No.4 Vide our detailed order of the even date recorded separately, this appeal along with connected appeals bearing No.408, 410 to 427 all of 2009 have been allowed and the respective complaint cases have been remanded back to the District Forum concerned. Parties have been directed to appear before the District Forum-II, U.T., Chandigarh on 26.4.2010.

9.04.2010. (Member) (President) (Member) Mp/-

STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY, CHANDIGARH.

Vinod Goel R/o # 2278/A, Sector 42C, Chandigarh.

..Appellant V e r s u s

1. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Santokh Singh, Office of Registrar Co-op. Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.

2. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Udham Singh, Office of Registrar Co-op. Societies Chandigarh, 30 Bays Building, Sector 17-A, Chandigarh.

3. Registrar Co-op. Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.

4. Inderjeet Bajaj, Ex. President c/o Nand Lal, SCF 14, Sector 29, Chandigarh.

2nd Address: H.No.1088, Sector 7, Panchkula.

5. Surjit Chaudhary, Ex. Secretary, H.No.117, Sector 18-B, Chandigarh.

6. Devinder Gupta, Ex. President, SCF-10, KB, Empire Store, Sector 21-C, Chandigarh.
7. Anil Aggarwal, Cashier-cum-Executive Member, H.No.1214, Universal Enclave, Sector 48-B, Chandigarh.
8. Kamal K.Sharma, Executive Member, 152/2, Sector 45-A, Chandigarh.
9. Devinder Pal Sharma, Executive Member, H.No.1114, Universal Enclave, Sector 48-B, Chandigarh.

---Respondents BEFORE :

Honble Mr. Justice Pritam Pal, President Honble Maj. Gen. S. P. Kapoor (retd), Member Honble Mrs. Neena Sandhu, Member Present: Sh. Aalok Jagga, advocate for appellant.

Sh.

K.K. Sharma, Advocate for respondents No. 1,2,5,6,8,&9 Sh.

M.S. Sihag, Distt. Attorney for respondent No.3 None for respondent No.4 Maj. Gen. S. P. Kapoor (retd), Member For orders, see the orders passed in Appeal No.409 of 2009 titled as Reteesh Kumar Vs. The Chandigarh Sector 21 Universal Housing Building First Society Ltd. and others vide which the present appeal has been allowed.

Copies of this order be sent to the parties free of charge.

Pronounced.

9th April 2010.

(MAJ GEN S. P. KAPOOR (RETD.)) MEMBER [JUSTICE PRITAM PAL]
PRESIDENT (NEENA SANDHU) MEMBER Mp/-

STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Usha Kiran R/o #60, Sector 10A, Chandigarh.

..Appellant V e r s u s

1. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Santokh Singh, Office of Registrar Co-op. Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.
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K.K. Sharma, Advocate for respondents No. 1,2,5,6,8,&9 Sh.

M.S. Sihag, Distt. Attorney for respondent No.3 None for respondent No.4 Maj. Gen. S. P. Kapoor (retd), Member For orders, see the orders passed in Appeal No.409 of 2009 titled as Reteesh Kumar Vs. The Chandigarh Sector 21 Universal

Housing Building First Society Ltd. and others vide which the present appeal has been allowed.

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Pronounced.

9th April 2010.

(MAJ GEN S. P. KAPOOR (RETD.)) MEMBER [JUSTICE PRITAM PAL]
PRESIDENT (NEENA SANDHU) MEMBER Mp/-

STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Appeal Varinder Sharma R/o #36-A, Chandigarh.

..Appellant V e r s u s

1. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Santokh Singh, Office of Registrar Co-op. Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.

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8. Kamal K.Sharma, Executive Member, 152/2, Sector 45-A, Chandigarh.

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K.K. Sharma, Advocate for respondents No. 1,2,5,6,8,&9 Sh.

M.S. Sihag, Distt. Attorney for respondent No.3 None for respondent No.4 Maj. Gen. S. P. Kapoor (retd), Member For orders, see the orders passed in Appeal No.409 of 2009 titled as Reteesh Kumar Vs. The Chandigarh Sector 21 Universal Housing Building First Society Ltd. and others vide which the present appeal has been allowed.

Copies of this order be sent to the parties free of charge.

Pronounced.

9th April 2010.

(MAJ GEN S. P. KAPOOR (RETD.)) MEMBER [JUSTICE PRITAM PAL]
PRESIDENT (NEENA SANDHU) MEMBER Mp/-

STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Hardeep Singh R/o #2308, Sector 42-C, Chandigarh.

..Appellant V e r s u s

1. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Santokh Singh, Office of Registrar Co-op. Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.

2. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Udham Singh, Office of Registrar Co-op. Societies Chandigarh, 30 Bays Building, Sector 17-A, Chandigarh.

3. Registrar Co-op. Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.

4. Inderjeet Bajaj, Ex. President c/o Nand Lal, SCF 14, Sector 29, Chandigarh.

2nd Address: H.No.1088, Sector 7, Panchkula.

5. Surjit Chaudhary, Ex. Secretary, H.No.117, Sector 18-B, Chandigarh.

6. Devinder Gupta, Ex. President, SCF-10, KB, Empire Store, Sector 21-C, Chandigarh.

7. Anil Aggarwal, Cashier-cum-Executive Member, H.No.1214, Universal Enclave, Sector 48-B, Chandigarh.

8. Kamal K.Sharma, Executive Member, 152/2, Sector 45-A, Chandigarh.

9. Devinder Pal Sharma, Executive Member, H.No.1114, Universal Enclave, Sector 48-B, Chandigarh.

---Respondents BEFORE :

Honble Mr. Justice Pritam Pal, President Honble Maj. Gen. S. P. Kapoor (retd), Member Honble Mrs. Neena Sandhu, Member Present: Sh. Aalok Jagga, advocate for appellant.

Sh.

K.K. Sharma, Advocate for respondents No. 1,2,5,6,8,&9 Sh.

M.S. Sihag, Distt. Attorney for respondent No.3 None for respondent No.4 Maj. Gen. S. P. Kapoor (retd), Member For orders, see the orders passed in Appeal No.409 of 2009 titled as Reteesh Kumar Vs. The Chandigarh Sector 21 Universal Housing Building First Society Ltd. and others vide which the present appeal has been allowed.

Copies of this order be sent to the parties free of charge.

Pronounced.

9th April 2010.

(MAJ GEN S. P. KAPOOR (RETD.)) MEMBER [JUSTICE PRITAM PAL]
PRESIDENT (NEENA SANDHU) MEMBER Mp/-

STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Pala Ram ..Appellant V e r s u s

1. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Santokh Singh, Office of Registrar Co-op. Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.

2. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Udham Singh, Office of Registrar Co-op. Societies Chandigarh, 30 Bays Building, Sector 17-A, Chandigarh.

3. Registrar Co-op. Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.

4. Inderjeet Bajaj, Ex. President c/o Nand Lal, SCF 14, Sector 29, Chandigarh.

2nd Address: H.No.1088, Sector 7, Panchkula.

5. Surjit Chaudhary, Ex. Secretary, H.No.117, Sector 18-B, Chandigarh.

6. Devinder Gupta, Ex. President, SCF-10, KB, Empire Store, Sector 21-C, Chandigarh.

7. Anil Aggarwal, Cashier-cum-Executive Member, H.No.1214, Universal Enclave, Sector 48-B, Chandigarh.

8. Kamal K.Sharma, Executive Member, 152/2, Sector 45-A, Chandigarh.

9. Devinder Pal Sharma, Executive Member, H.No.1114, Universal Enclave, Sector 48-B, Chandigarh.

---Respondents BEFORE :

Honble Mr. Justice Pritam Pal, President Honble Maj. Gen. S. P. Kapoor (retd), Member Honble Mrs. Neena Sandhu, Member Present: Sh. Aalok Jagga, advocate for appellant.

Sh.

K.K. Sharma, Advocate for respondents No. 1,2,5,6,8,&9 Sh.

M.S. Sihag, Distt. Attorney for respondent No.3 None for respondent No.4 Maj. Gen. S. P. Kapoor (retd), Member For orders, see the orders passed in Appeal No.409 of 2009 titled as Reteesh Kumar Vs. The Chandigarh Sector 21 Universal Housing Building First Society Ltd. and others vide which the present appeal has been allowed.

Copies of this order be sent to the parties free of charge.

Pronounced.

9th April 2010.

(MAJ GEN S. P. KAPOOR (RETD.)) MEMBER [JUSTICE PRITAM PAL]
PRESIDENT (NEENA SANDHU) MEMBER Mp/-

STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Sangeeta Kumari ..Appellant V e r s u s

1. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Santokh Singh, Office of Registrar Co-op. Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.

2. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Udham Singh, Office of Registrar Co-op. Societies Chandigarh, 30 Bays Building, Sector 17-A, Chandigarh.

3. Registrar Co-op. Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.

4. Inderjeet Bajaj, Ex. President c/o Nand Lal, SCF 14, Sector 29, Chandigarh.

2nd Address: H.No.1088, Sector 7, Panchkula.

5. Surjit Chaudhary, Ex. Secretary, H.No.117, Sector 18-B, Chandigarh.

6. Devinder Gupta, Ex. President, SCF-10, KB, Empire Store, Sector 21-C, Chandigarh.

7. Anil Aggarwal, Cashier-cum-Executive Member, H.No.1214, Universal Enclave, Sector 48-B, Chandigarh.

8. Kamal K.Sharma, Executive Member, 152/2, Sector 45-A, Chandigarh.

9. Devinder Pal Sharma, Executive Member, H.No.1114, Universal Enclave, Sector 48-B, Chandigarh.

---Respondents BEFORE :

Honble Mr. Justice Pritam Pal, President Honble Maj. Gen. S. P. Kapoor (retd), Member Honble Mrs. Neena Sandhu, Member Present: Sh. Aalok Jagga, advocate for appellant.

Sh.

K.K. Sharma, Advocate for respondents No. 1,2,5,6,8,&9 Sh.

M.S. Sihag, Distt. Attorney for respondent No.3 None for respondent No.4 Maj. Gen. S. P. Kapoor (retd), Member For orders, see the orders passed in Appeal No.409 of 2009 titled as Reteesh Kumar Vs. The Chandigarh Sector 21 Universal Housing Building First Society Ltd. and others vide which the present appeal has been allowed.

Copies of this order be sent to the parties free of charge.

Pronounced.

9th April 2010.

(MAJ GEN S. P. KAPOOR (RETD.)) MEMBER [JUSTICE PRITAM PAL]
PRESIDENT (NEENA SANDHU) MEMBER Mp/-

STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Vijay Dutta ..Appellant V e r s u s

1. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Santokh Singh, Office of Registrar Co-op. Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.

2. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Udham Singh, Office of Registrar Co-op. Societies Chandigarh, 30 Bays Building, Sector 17-A, Chandigarh.

3. Registrar Co-op. Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.

4. Inderjeet Bajaj, Ex. President c/o Nand Lal, SCF 14, Sector 29, Chandigarh.

2nd Address: H.No.1088, Sector 7, Panchkula.

5. Surjit Chaudhary, Ex. Secretary, H.No.117, Sector 18-B, Chandigarh.

6. Devinder Gupta, Ex. President, SCF-10, KB, Empire Store, Sector 21-C, Chandigarh.

7. Anil Aggarwal, Cashier-cum-Executive Member, H.No.1214, Universal Enclave, Sector 48-B, Chandigarh.

8. Kamal K.Sharma, Executive Member, 152/2, Sector 45-A, Chandigarh.

9. Devinder Pal Sharma, Executive Member, H.No.1114, Universal Enclave, Sector 48-B, Chandigarh.

---Respondents BEFORE :

Honble Mr. Justice Pritam Pal, President Honble Maj. Gen. S. P. Kapoor (retd), Member Honble Mrs. Neena Sandhu, Member Present: Sh. Aalok Jagga, advocate for appellant.

Sh.

K.K. Sharma, Advocate for respondents No. 1,2,5,6,8,&9 Sh.

M.S. Sihag, Distt. Attorney for respondent No.3 None for respondent No.4 Maj. Gen. S. P. Kapoor (retd), Member For orders, see the orders passed in Appeal No.409 of 2009 titled as Reteesh Kumar Vs. The Chandigarh Sector 21 Universal Housing Building First Society Ltd. and others vide which the present appeal has been allowed.

Copies of this order be sent to the parties free of charge.

Pronounced.

9th April 2010.

(MAJ GEN S. P. KAPOOR (RETD.)) MEMBER [JUSTICE PRITAM PAL]
PRESIDENT (NEENA SANDHU) MEMBER Mp/-

STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Appeal Santosh Kumari R/o 1271, Sector 49B, Chandigarh.

..Appellant V e r s u s

1. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Santokh Singh, Office of Registrar Co-op. Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.

2. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Udham Singh, Office of Registrar Co-op. Societies Chandigarh, 30 Bays Building, Sector 17-A, Chandigarh.

3. Registrar Co-op. Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.

4. Inderjeet Bajaj, Ex. President c/o Nand Lal, SCF 14, Sector 29, Chandigarh.

2nd Address: H.No.1088, Sector 7, Panchkula.

5. Surjit Chaudhary, Ex. Secretary, H.No.117, Sector 18-B, Chandigarh.

6. Devinder Gupta, Ex. President, SCF-10, KB, Empire Store, Sector 21-C, Chandigarh.
7. Anil Aggarwal, Cashier-cum-Executive Member, H.No.1214, Universal Enclave, Sector 48-B, Chandigarh.
8. Kamal K.Sharma, Executive Member, 152/2, Sector 45-A, Chandigarh.
9. Devinder Pal Sharma, Executive Member, H.No.1114, Universal Enclave, Sector 48-B, Chandigarh.

---Respondents BEFORE :

Honble Mr. Justice Pritam Pal, President Honble Maj. Gen. S. P. Kapoor (retd), Member Honble Mrs. Neena Sandhu, Member Present: Sh. Aalok Jagga, advocate for appellant.

Sh.

K.K. Sharma, Advocate for respondents No. 1,2,5,6,8,&9 Sh.

M.S. Sihag, Distt. Attorney for respondent No.3 None for respondent No.4 Maj. Gen. S. P. Kapoor (retd), Member For orders, see the orders passed in Appeal No.409 of 2009 titled as Reteesh Kumar Vs. The Chandigarh Sector 21 Universal Housing Building First Society Ltd. and others vide which the present appeal has been allowed.

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Pronounced.

9th April 2010.

(MAJ GEN S. P. KAPOOR (RETD.)) MEMBER [JUSTICE PRITAM PAL]
PRESIDENT (NEENA SANDHU) MEMBER Mp/-

STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Kalwant Singh R/o #120, Sector 32A, Chandigarh.

..Appellant V e r s u s

1. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Santokh Singh, Office of Registrar Co-op. Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.

2. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Udham Singh, Office of Registrar Co-op. Societies Chandigarh, 30 Bays Building, Sector 17-A, Chandigarh.

3. Registrar Co-op. Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.

4. Inderjeet Bajaj, Ex. President c/o Nand Lal, SCF 14, Sector 29, Chandigarh.

2nd Address: H.No.1088, Sector 7, Panchkula.

5. Surjit Chaudhary, Ex. Secretary, H.No.117, Sector 18-B, Chandigarh.

6. Devinder Gupta, Ex. President, SCF-10, KB, Empire Store, Sector 21-C, Chandigarh.

7. Anil Aggarwal, Cashier-cum-Executive Member, H.No.1214, Universal Enclave, Sector 48-B, Chandigarh.

8. Kamal K.Sharma, Executive Member, 152/2, Sector 45-A, Chandigarh.

9. Devinder Pal Sharma, Executive Member, H.No.1114, Universal Enclave, Sector 48-B, Chandigarh.

---Respondents BEFORE :

Honble Mr. Justice Pritam Pal, President Honble Maj. Gen. S. P. Kapoor (retd), Member Honble Mrs. Neena Sandhu, Member Present: Sh. Aalok Jagga, advocate for appellant.

Sh.

K.K. Sharma, Advocate for respondents No. 1,2,5,6,8,&9 Sh.

M.S. Sihag, Distt. Attorney for respondent No.3 None for respondent No.4 Maj. Gen. S. P. Kapoor (retd), Member For orders, see the orders passed in Appeal No.409 of 2009 titled as Reteesh Kumar Vs. The Chandigarh Sector 21 Universal Housing Building First Society Ltd. and others vide which the present appeal has been allowed.

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Pronounced.

9th April 2010.

(MAJ GEN S. P. KAPOOR (RETD.)) MEMBER [JUSTICE PRITAM PAL]
PRESIDENT (NEENA SANDHU) MEMBER Mp/-

STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Surinder Kaur R/o 2200/3, Sector 45C, Chandigarh.

..Appellant V e r s u s

1. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Santokh Singh, Office of Registrar Co-op. Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.
2. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Udham Singh, Office of Registrar Co-op. Societies Chandigarh, 30 Bays Building, Sector 17-A, Chandigarh.
3. Registrar Co-op. Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.
4. Inderjeet Bajaj, Ex. President c/o Nand Lal, SCF 14, Sector 29, Chandigarh.

2nd Address: H.No.1088, Sector 7, Panchkula.

5. Surjit Chaudhary, Ex. Secretary, H.No.117, Sector 18-B, Chandigarh.

6. Devinder Gupta, Ex. President, SCF-10, KB, Empire Store, Sector 21-C, Chandigarh.

7. Anil Aggarwal, Cashier-cum-Executive Member, H.No.1214, Universal Enclave, Sector 48-B, Chandigarh.

8. Kamal K.Sharma, Executive Member, 152/2, Sector 45-A, Chandigarh.

9. Devinder Pal Sharma, Executive Member, H.No.1114, Universal Enclave, Sector 48-B, Chandigarh.

---Respondents BEFORE :

Honble Mr. Justice Pritam Pal, President Honble Maj. Gen. S. P. Kapoor (retd), Member Honble Mrs. Neena Sandhu, Member Present: Sh. Aalok Jagga, advocate for appellant.

Sh.

K.K. Sharma, Advocate for respondents No. 1,2,5,6,8,&9 Sh.

M.S. Sihag, Distt. Attorney for respondent No.3 None for respondent No.4 Maj. Gen. S. P. Kapoor (retd), Member For orders, see the orders passed in Appeal No.409 of 2009 titled as Reteesh Kumar Vs. The Chandigarh Sector 21 Universal Housing Building First Society Ltd. and others vide which the present appeal has been allowed.

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Pronounced.

9th April 2010.

(MAJ GEN S. P. KAPOOR (RETD.)) MEMBER [JUSTICE PRITAM PAL] PRESIDENT (NEENA SANDHU) MEMBER Mp/-

STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY, CHANDIGARH.

Manjit Kaur ..Appellant V e r s u s

1. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Santokh Singh, Office of Registrar Co-op. Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.

2. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Udham Singh, Office of Registrar Co-op. Societies Chandigarh, 30 Bays Building, Sector 17-A, Chandigarh.

3. Registrar Co-op. Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.

4. Inderjeet Bajaj, Ex. President c/o Nand Lal, SCF 14, Sector 29, Chandigarh.

2nd Address: H.No.1088, Sector 7, Panchkula.

5. Surjit Chaudhary, Ex. Secretary, H.No.117, Sector 18-B, Chandigarh.

6. Devinder Gupta, Ex. President, SCF-10, KB, Empire Store, Sector 21-C, Chandigarh.

7. Anil Aggarwal, Cashier-cum-Executive Member, H.No.1214, Universal Enclave, Sector 48-B, Chandigarh.

8. Kamal K.Sharma, Executive Member, 152/2, Sector 45-A, Chandigarh.

9. Devinder Pal Sharma, Executive Member, H.No.1114, Universal Enclave, Sector 48-B, Chandigarh.

---Respondents BEFORE :

Honble Mr. Justice Pritam Pal, President Honble Maj. Gen. S. P. Kapoor (retd), Member Honble Mrs. Neena Sandhu, Member Present: Sh. Aalok Jagga, advocate for appellant.

Sh.

K.K. Sharma, Advocate for respondents No. 1,2,5,6,8,&9 Sh.

M.S. Sihag, Distt. Attorney for respondent No.3 None for respondent No.4 Maj. Gen. S. P. Kapoor (retd), Member For orders, see the orders passed in Appeal No.409 of 2009 titled as Reteesh Kumar Vs. The Chandigarh Sector 21 Universal Housing Building First Society Ltd. and others vide which the present appeal has been allowed.

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Pronounced.

9th April 2010.

(MAJ GEN S. P. KAPOOR (RETD.)) MEMBER [JUSTICE PRITAM PAL]
PRESIDENT (NEENA SANDHU) MEMBER Mp/-

STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Sanjeev Jain R/o 2527, Sector 40C, Chandigarh. .Appellant V e r s u s

1. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Santokh Singh, Office of Registrar Co-op. Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.

2. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Udham Singh, Office of Registrar Co-op. Societies Chandigarh, 30 Bays Building, Sector 17-A, Chandigarh.

3. Registrar Co-op. Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.

4. Inderjeet Bajaj, Ex. President c/o Nand Lal, SCF 14, Sector 29, Chandigarh.

2nd Address: H.No.1088, Sector 7, Panchkula.

5. Surjit Chaudhary, Ex. Secretary, H.No.117, Sector 18-B, Chandigarh.

6. Devinder Gupta, Ex. President, SCF-10, KB, Empire Store, Sector 21-C, Chandigarh.

7. Anil Aggarwal, Cashier-cum-Executive Member, H.No.1214, Universal Enclave, Sector 48-B, Chandigarh.

8. Kamal K.Sharma, Executive Member, 152/2, Sector 45-A, Chandigarh.

9. Devinder Pal Sharma, Executive Member, H.No.1114, Universal Enclave, Sector 48-B, Chandigarh.

---Respondents BEFORE :

Honble Mr. Justice Pritam Pal, President Honble Maj. Gen. S. P. Kapoor (retd), Member Honble Mrs. Neena Sandhu, Member Present: Sh. Aalok Jagga, advocate for appellant.

Sh.

K.K. Sharma, Advocate for respondents No. 1,2,5,6,8,&9 Sh.

M.S. Sihag, Distt. Attorney for respondent No.3 None for respondent No.4 Maj. Gen. S. P. Kapoor (retd), Member For orders, see the orders passed in Appeal No.409 of 2009 titled as Reteesh Kumar Vs. The Chandigarh Sector 21 Universal Housing Building First Society Ltd. and others vide which the present appeal has been allowed.

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Pronounced.

9th April 2010.

(MAJ GEN S. P. KAPOOR (RETD.)) MEMBER [JUSTICE PRITAM PAL]
PRESIDENT (NEENA SANDHU) MEMBER Mp/-

STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Sushma Sharma R/o 3968, Sector 22D, Chandigarh.

..Appellant V e r s u s

1. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Santokh Singh, Office of Registrar Co-op. Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.

2. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Udham Singh, Office of Registrar Co-op. Societies Chandigarh, 30 Bays Building, Sector 17-A, Chandigarh.

3. Registrar Co-op. Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.

4. Inderjeet Bajaj, Ex. President c/o Nand Lal, SCF 14, Sector 29, Chandigarh.

2nd Address: H.No.1088, Sector 7, Panchkula.

5. Surjit Chaudhary, Ex. Secretary, H.No.117, Sector 18-B, Chandigarh.

6. Devinder Gupta, Ex. President, SCF-10, KB, Empire Store, Sector 21-C, Chandigarh.

7. Anil Aggarwal, Cashier-cum-Executive Member, H.No.1214, Universal Enclave, Sector 48-B, Chandigarh.

8. Kamal K.Sharma, Executive Member, 152/2, Sector 45-A, Chandigarh.

9. Devinder Pal Sharma, Executive Member, H.No.1114, Universal Enclave, Sector 48-B, Chandigarh.

---Respondents BEFORE :

Honble Mr. Justice Pritam Pal, President Honble Maj. Gen. S. P. Kapoor (retd), Member Honble Mrs. Neena Sandhu, Member Present: Sh. Aalok Jagga, advocate for appellant.

Sh.

K.K. Sharma, Advocate for respondents No. 1,2,5,6,8,&9 Sh.

M.S. Sihag, Distt. Attorney for respondent No.3 None for respondent No.4 Maj. Gen. S. P. Kapoor (retd), Member For orders, see the orders passed in Appeal No.409 of 2009 titled as Reteesh Kumar Vs. The Chandigarh Sector 21 Universal Housing Building First Society Ltd. and others vide which the present appeal has been allowed.

Copies of this order be sent to the parties free of charge.

Pronounced.

9th April 2010.

(MAJ GEN S. P. KAPOOR (RETD.)) MEMBER [JUSTICE PRITAM PAL]
PRESIDENT (NEENA SANDHU) MEMBER Mp/-

STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Kuldip Singh Bhatia 3060, Sector 41D, Chandigarh.

..Appellant V e r s u s

1. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Santokh Singh, Office of Registrar Co-op. Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.

2. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Udham Singh, Office of Registrar Co-op. Societies Chandigarh, 30 Bays Building, Sector 17-A, Chandigarh.

3. Registrar Co-op. Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.

4. Inderjeet Bajaj, Ex. President c/o Nand Lal, SCF 14, Sector 29, Chandigarh.

2nd Address: H.No.1088, Sector 7, Panchkula.

5. Surjit Chaudhary, Ex. Secretary, H.No.117, Sector 18-B, Chandigarh.

6. Devinder Gupta, Ex. President, SCF-10, KB, Empire Store, Sector 21-C, Chandigarh.

7. Anil Aggarwal, Cashier-cum-Executive Member, H.No.1214, Universal Enclave, Sector 48-B, Chandigarh.

8. Kamal K.Sharma, Executive Member, 152/2, Sector 45-A, Chandigarh.

9. Devinder Pal Sharma, Executive Member, H.No.1114, Universal Enclave, Sector 48-B, Chandigarh.

---Respondents BEFORE :

Honble Mr. Justice Pritam Pal, President Honble Maj. Gen. S. P. Kapoor (retd), Member Honble Mrs. Neena Sandhu, Member Present: Sh. Aalok Jagga, advocate for appellant.

Sh.

K.K. Sharma, Advocate for respondents No. 1,2,5,6,8,&9 Sh.

M.S. Sihag, Distt. Attorney for respondent No.3 None for respondent No.4 Maj. Gen. S. P. Kapoor (retd), Member For orders, see the orders passed in Appeal No.409 of 2009 titled as Reteesh Kumar Vs. The Chandigarh Sector 21 Universal Housing Building First Society Ltd. and others vide which the present appeal has been allowed.

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Pronounced.

9th April 2010.

(MAJ GEN S. P. KAPOOR (RETD.)) MEMBER [JUSTICE PRITAM PAL]
PRESIDENT (NEENA SANDHU) MEMBER Mp/-

STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Appeal Shalini Vadehra 2013/1, Sector 47C, Chandigarh.

..Appellant V e r s u s

1. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Santokh Singh, Office of Registrar Co-op. Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.

2. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Udham Singh, Office of Registrar Co-op. Societies Chandigarh, 30 Bays Building, Sector 17-A, Chandigarh.

3. Registrar Co-op. Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.

4. Inderjeet Bajaj, Ex. President c/o Nand Lal, SCF 14, Sector 29, Chandigarh.

2nd Address: H.No.1088, Sector 7, Panchkula.

5. Surjit Chaudhary, Ex. Secretary, H.No.117, Sector 18-B, Chandigarh.

6. Devinder Gupta, Ex. President, SCF-10, KB, Empire Store, Sector 21-C, Chandigarh.

7. Anil Aggarwal, Cashier-cum-Executive Member, H.No.1214, Universal Enclave, Sector 48-B, Chandigarh.

8. Kamal K.Sharma, Executive Member, 152/2, Sector 45-A, Chandigarh.

9. Devinder Pal Sharma, Executive Member, H.No.1114, Universal Enclave, Sector 48-B, Chandigarh.

---Respondents BEFORE :

Honble Mr. Justice Pritam Pal, President Honble Maj. Gen. S. P. Kapoor (retd), Member Honble Mrs. Neena Sandhu, Member Present: Sh. Aalok Jagga, advocate for appellant.

Sh.

K.K. Sharma, Advocate for respondents No. 1,2,5,6,8,&9 Sh.

M.S. Sihag, Distt. Attorney for respondent No.3 None for respondent No.4 Maj. Gen. S. P. Kapoor (retd), Member For orders, see the orders passed in Appeal No.409 of 2009 titled as Reteesh Kumar Vs. The Chandigarh Sector 21 Universal Housing Building First Society Ltd. and others vide which the present appeal has been allowed.

Copies of this order be sent to the parties free of charge.

Pronounced.

9th April 2010.

(MAJ GEN S. P. KAPOOR (RETD.)) MEMBER [JUSTICE PRITAM PAL]
PRESIDENT (NEENA SANDHU) MEMBER Mp/-

STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Raj Kumar Gupta, R/o C-1 kendriya Vihar, Sector 48B, Chandigarh.

..Appellant V e r s u s

1. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Santokh Singh, Office of Registrar Co-op. Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.

2. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Udham Singh, Office of Registrar Co-op. Societies Chandigarh, 30 Bays Building, Sector 17-A, Chandigarh.

3. Registrar Co-op. Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.

4. Inderjeet Bajaj, Ex. President c/o Nand Lal, SCF 14, Sector 29, Chandigarh.

2nd Address: H.No.1088, Sector 7, Panchkula.

5. Surjit Chaudhary, Ex. Secretary, H.No.117, Sector 18-B, Chandigarh.

6. Devinder Gupta, Ex. President, SCF-10, KB, Empire Store, Sector 21-C, Chandigarh.

7. Anil Aggarwal, Cashier-cum-Executive Member, H.No.1214, Universal Enclave, Sector 48-B, Chandigarh.

8. Kamal K.Sharma, Executive Member, 152/2, Sector 45-A, Chandigarh.

9. Devinder Pal Sharma, Executive Member, H.No.1114, Universal Enclave, Sector 48-B, Chandigarh.

---Respondents BEFORE :

Honble Mr. Justice Pritam Pal, President Honble Maj. Gen. S. P. Kapoor (retd), Member Honble Mrs. Neena Sandhu, Member Present: Sh. Aalok Jagga, advocate for appellant.

Sh.

K.K. Sharma, Advocate for respondents No. 1,2,5,6,8,&9 Sh.

M.S. Sihag, Distt. Attorney for respondent No.3 None for respondent No.4 Maj. Gen. S. P. Kapoor (retd), Member For orders, see the orders passed in Appeal No.409 of 2009 titled as Reteesh Kumar Vs. The Chandigarh Sector 21 Universal Housing Building First Society Ltd. and others vide which the present appeal has been allowed.

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Pronounced.

9th April 2010.

(MAJ GEN S. P. KAPOOR (RETD.)) MEMBER [JUSTICE PRITAM PAL]
PRESIDENT (NEENA SANDHU) MEMBER Mp/-

STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Mukesh Kumar R/o 2300, Sector 19C, Chandigarh.

..Appellant V e r s u s

1. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Santokh Singh, Office of Registrar Co-op. Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.

2. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Udham Singh, Office of Registrar Co-op. Societies Chandigarh, 30 Bays Building, Sector 17-A, Chandigarh.

3. Registrar Co-op. Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.

4. Inderjeet Bajaj, Ex. President c/o Nand Lal, SCF 14, Sector 29, Chandigarh.

2nd Address: H.No.1088, Sector 7, Panchkula.

5. Surjit Chaudhary, Ex. Secretary, H.No.117, Sector 18-B, Chandigarh.

6. Devinder Gupta, Ex. President, SCF-10, KB, Empire Store, Sector 21-C, Chandigarh.

7. Anil Aggarwal, Cashier-cum-Executive Member, H.No.1214, Universal Enclave, Sector 48-B, Chandigarh.

8. Kamal K.Sharma, Executive Member, 152/2, Sector 45-A, Chandigarh.

9. Devinder Pal Sharma, Executive Member, H.No.1114, Universal Enclave, Sector 48-B, Chandigarh.

---Respondents BEFORE :

Honble Mr. Justice Pritam Pal, President Honble Maj. Gen. S. P. Kapoor (retd), Member Honble Mrs. Neena Sandhu, Member Present: Sh. Aalok Jagga, advocate for appellant.

Sh.

K.K. Sharma, Advocate for respondents No. 1,2,5,6,8,&9 Sh.

M.S. Sihag, Distt. Attorney for respondent No.3 None for respondent No.4 Maj. Gen. S. P. Kapoor (retd), Member For orders, see the orders passed in Appeal No.409 of 2009 titled as Reteesh Kumar Vs. The Chandigarh Sector 21 Universal Housing Building First Society Ltd. and others vide which the present appeal has been allowed.

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Pronounced.

9th April 2010.

(MAJ GEN S. P. KAPOOR (RETD.)) MEMBER [JUSTICE PRITAM PAL]
PRESIDENT (NEENA SANDHU) MEMBER Mp/-

STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY,
CHANDIGARH.

Har Deo Singh ..Appellant V e r s u s

1. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Santokh Singh, Office of Registrar Co-op. Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.

2. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Udham Singh, Office of Registrar Co-op. Societies Chandigarh, 30 Bays Building, Sector 17-A, Chandigarh.

3. Registrar Co-op. Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.

4. Inderjeet Bajaj, Ex. President c/o Nand Lal, SCF 14, Sector 29, Chandigarh.

2nd Address: H.No.1088, Sector 7, Panchkula.

5. Surjit Chaudhary, Ex. Secretary, H.No.117, Sector 18-B, Chandigarh.

6. Devinder Gupta, Ex. President, SCF-10, KB, Empire Store, Sector 21-C, Chandigarh.

7. Anil Aggarwal, Cashier-cum-Executive Member, H.No.1214, Universal Enclave, Sector 48-B, Chandigarh.

8. Kamal K.Sharma, Executive Member, 152/2, Sector 45-A, Chandigarh.

9. Devinder Pal Sharma, Executive Member, H.No.1114, Universal Enclave, Sector 48-B, Chandigarh.

---Respondents BEFORE: Hon'ble Mr. Justice Pritam Pal, President.

Maj. Gen. S.P. Kapoor (Retd.), Member Mrs. Neena Sandhu, Member.

Present: Sh. Aalok Jagga, advocate for appellant.

Sh.

K.K. Sharma, Advocate for respondents No. 1,2,5,6,8,&9 Sh.

M.S. Sihag, Distt. Attorney for respondent No.3 None for respondent No.4 Maj. Gen. S. P. Kapoor (retd), Member For orders, see the orders passed in Appeal No.409 of 2009 titled as Reteesh Kumar Vs. The Chandigarh Sector 21 Universal Housing Building First Society Ltd. and others vide which the present appeal has been allowed.

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Pronounced.

9th April 2010.

(MAJ GEN S. P. KAPOOR (RETD.)) MEMBER [JUSTICE PRITAM PAL] PRESIDENT (NEENA SANDHU) MEMBER Mp/ STATE CONSUMER DISPUTES REDRESSAL COMMISSION, UNION TERRITORY, CHANDIGARH.

Appeal No 408 of 2009 Kuldeep Singh R/o Flat No.2031/1 Sector 47-C, Chandigarh 160047.

..Appellant V e r s u s

1. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Santokh Singh, Office of Registrar Co-op. Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.

2. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Udham Singh, Office of Registrar Co-op. Societies Chandigarh, 30 Bays Building, Sector 17-A, Chandigarh.

3. Registrar Co-op. Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.

4. Inderjeet Bajaj, Ex. President c/o Nand Lal, SCF 14, Sector 29, Chandigarh.

2nd Address: H.No.1088, Sector 7, Panchkula.

5. Surjit Chaudhary, Ex. Secretary, H.No.117, Sector 18-B, Chandigarh.

6. Devinder Gupta, Ex. President, SCF-10, KB, Empire Store, Sector 21-C, Chandigarh.

7. Anil Aggarwal, Cashier-cum-Executive Member, H.No.1214, Universal Enclave, Sector 48-B, Chandigarh.

8. Kamal K.Sharma, Executive Member, 152/2, Sector 45-A, Chandigarh.

9. Devinder Pal Sharma, Executive Member, H.No.1114, Universal Enclave, Sector 48-B, Chandigarh.

---Respondents BEFORE: Hon'ble Mr. Justice Pritam Pal, President.

Maj. Gen. S.P. Kapoor (Retd.), Member Mrs. Neena Sandhu, Member.

Present: Sh. Aalok Jagga, advocate for appellant.

Sh.

K.K. Sharma, Advocate for respondents No. 1,2,5,6,8,&9 Sh.

M.S. Sihag, Distt. Attorney for respondent No.3 None for respondent No.4 Maj. Gen. S. P. Kapoor (retd), Member For orders, see the orders passed in Appeal No.409 of 2009 titled as Reteesh Kumar Vs. The Chandigarh Sector 21 Universal Housing Building First Society Ltd. and others vide which the present appeal has been allowed.

Copies of this order be sent to the parties free of charge.

Pronounced.

9th April 2010.

(MAJ GEN S. P. KAPOOR (RETD.)) MEMBER [JUSTICE PRITAM PAL] PRESIDENT (NEENA SANDHU) MEMBER Mp/-